

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 39-010

Emergency Legislation

Amendments to Title 16 of the Chickasaw Nation Code

(Rules for Virtual Attendance of Sessions, Meetings, and Voting)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules for Legislative Sessions, Meetings, and Voting, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend and enact further rules to end virtual attendance and require physical presence of Legislators at Legislative meetings for quorum, voting, discussion, and debate with the ability to take all medically necessary and appropriate measures to maintain health and safety of Legislators and staff during attendance.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 16, Sections 16-201.1 and 16-201.7(B)(13) of the Chickasaw Nation Code, all other sections to remain the same (additions shown in red, deletions stricken through). Amendments provided as followed:

“SECTION 16-201.1

SESSIONS AND MEETINGS.

E. Regular Sessions of the Legislature, ~~during the Public Health Emergency issued by the Governor during the Covid-19 Pandemic,~~ shall be held at 9:00 a.m. at the Legislative Building, Chickasaw Nation Headquarters ~~or from any place through virtual conference software. Meetings during the Covid-19 Public Health Emergency must include video and sound recording of all present Legislators. This provision shall automatically terminate and be stricken from the Code upon the Governor's lifting of the Covid-19 Public Health Emergency or by a vote of the Legislature.~~

SECTION 16-201.7

SPECIAL RULES OF ORDER OF THE LEGISLATURE.

13. Only Legislators present at a meeting or Session may vote on a question presented. No provision shall allow voting on a question by phone, mail, or proxy, ~~except during the Covid-19 Pandemic, Public Health Emergency, issued by the Governor, which allows Legislators to be present virtually for quorum, voting, speaking, and debate. Virtual attendance must be video and audio recorded of each Legislator for quorum, voting, speaking, and debate. This exception shall automatically terminate and be stricken from the Chickasaw Nation Code upon the Governor's lifting of the Covid-19 Public Health Emergency or by vote of the Legislature.~~ To be "present", Legislators must be physically (not virtually) present for quorum, voting, speaking, and debate. Legislators may physically distance or take other medically necessary precautions for the health and safety of the Legislature and staff.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 20, 2022, by a vote of 13 ayes, 0 nays and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAY 20 2022

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Explanation

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Emergency Resolution.

Under 16-201.5(A), any member of the Legislature can recommend that the Legislature consider proposed legislation as Emergency Legislation. Also, under 16-201.4(G)(1), Emergency Legislation may be adopted in Committee of the Whole to be placed on the Agenda.

This Emergency Permanent Resolution seeks to amend the rules for Legislative Sessions and Meetings, as allowed under the Chickasaw Constitution. The substance of the amendments of this Permanent Resolution ends virtual attendance, which was allowed during heightened Covid-19 cases within the Nation.

Presented by:

Legislative Member,
Chickasaw Tribal Legislature